

K M Gagana @ Gagana vs K M Shivanadayya @ Shivanandswami on 8 September, 2023

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NC: 2023:KHC-K:7192
CP No.200007 of 2023

IN THE HIGH COURT OF KARNATAKA
KALABURAGI BENCH
DATED THIS THE 8TH DAY OF SEPTEMBER, 2023
BEFORE
THE HON'BLE MRS JUSTICE K S HEMALEKHA
CIVIL PETITION NO.200007 OF 2023 (RES)

BETWEEN:

SMT. K .M. GAGANA
W/O K.M. SHIVANANDAYYA
AGED ABOUT: 27 YEARS
OCC: HOUSEWIFE
R/O H.NO.1-4-857/3, I.B. ROAD
JYOTHI COLONY, RAICHUR
TQ. AND DIST. RAICHUR- 584 103

...PETITIONER

(BY SRI ARUNKUMAR AMARGUNDAPPA, ADVOCATE)

AND:

SRI K. M. SHIVANANDAYYA
S/O K.M. VEERESHIAH
AGED ABOUT: 37 YEARS
OCC: EMPLOYEE
R/O WARD NO.17, NEAR S.R. RANGAPPA HOUSE
S.S NAGAR, SIRUGUPPA

Digitally signed
by SHYAMALA
Location:

TQ: SIRGUPPA
DIST: BELLARI- 583 121

HIGH COURT
OF
KARNATAKA

...RESPONDENT

(BY SRI A. A. GUNNAPUR, ADVOCATE)

THIS CP IS FILED U/S 24 OF CPC, PRAYING TO
TRANSFER THE PETITION IN M.C.NO.15/2022, PENDING ON
THE FILE OF PRL. SENIOR CIVIL JUDGE AND CJM COURT,
BELLARI SITTING AT II ASCJ SIRUGUPPA TO THE PRINCIPAL
JUDGE, FAMILY COURT RAICHUR, IN THE INTEREST OF
JUSTICE AND EQUITY.

THIS PETITION COMING ON FOR ADMISSION, THIS DAY,
THE COURT MADE THE FOLLOWING:

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ORDER

Though the respondent is served and represented by the counsel, there is no appearance on his behalf. On the earlier occasion when the matter was listed before this Court on 18.08.2023 and 01.09.2023, there was no representation on behalf of the respondent. In order to afford an opportunity, the matter was listed today (08.09.2023). Even today, learned counsel for the respondent has remained absent.

2. Heard learned counsel for the petitioner and perused the material on record.

3. The present petition is by the wife seeking to withdraw M.C.No.15/2022 pending on the file of the Principal Senior Civil Judge and CJM Court, Bellari sitting at II ASCJ, Siruguppa and transfer the same to the Principal Judge, Family Court, Raichur.

4. The brief facts of the case are that:

NC: 2023:KHC-K:7192 The petitioner is the legally wedded wife of the respondent and their marriage was solemnized on 21.05.2014 at Sri Rajamata Kalyan Mantapa, Ashpur Road, Raichur as per the customs and rituals prevailing in their community. It is an undisputed fact that in the said wedlock, female child is born and she is in the care and custody of the petitioner. Due to un-cordial relationship between the petitioner and the respondent, they are living separately. It appears that M.C.No.15/2022 came to be filed by the respondent-husband seeking for divorce under Section 13(1)(ia) and (ib) of the Hindu Marriage Act, 1955.

5. It is the case of the petitioner that the petitioner has filed Criminal Miscellaneous No.267/2019 under Section 125 of Cr.P.C. seeking maintenance against her husband and the Family Court, Raichur by the impugned order has directed the husband to pay monthly maintenance of Rs.4,000/- per month to the petitioner and Rs.3,000/- to her child. The petitioner has filed NC: 2023:KHC-K:7192 petition under Section 125(3) read with Section 128 of Cr.P.C. for recovery of maintenance and the arrest warrant through Superintendent of Police, Raichur is issued to the respondent - husband, since the respondent-husband failed to comply with the award of maintenance granted in CrI.Misc.No.267/2019. It is contended that the petitioner has no source of income and she is at the mercy of her parents and the respondent has filed petition seeking for divorce before the Siruguppa Court and the distance between Raichur and Siruguppa is around 180 kilometers and she being a lady, is unable to travel all the way to attend the matter at Siruguppa.

6. Objections have been filed by the respondent inter alia contending that the respondent was working as a part time English lecturer, but due to his mental disorder, he has discontinued his job and he has also lost his income and he is solely depends on the parents. It is contended in the

objections that the respondent is suffering from mental shock and loss of memory and lost his job and NC: 2023:KHC-K:7192 therefore, it is very difficult to travel and appear before the Family Court, Raichur in the event the M.C.No.15/2022 is transferred, the husband would be put to great harassment and mental torture and sought to dismiss the petition on the sole ground that the respondent is suffering from "Chronic Anxiety Disorder" and the respondent is unable to move from one place to another, more particularly if M.C.No.15/2016 is transferred.

7. M.C.No.15/2022 was filed on 13.07.2022 by the husband under Section 13(1) (ia) and (ib) of the Hindu Marriage Act seeking for divorce. The allegations are made against the wife stating that she has not performed the matrimonial obligations and though several efforts were made by the husband, wife has expressed her desire not to join and live with her husband. In the statement of objections filed by the husband before this Court, it is stated that he is suffering from mental disorder i.e., "Chronic Anxiety Disorder" and in order to substantiate his contention, he has placed reliance on certain documents, NC: 2023:KHC-K:7192 which are at Annexure-A. The documents produced at Annexure - A pertains to various dates inevitably prior to filing M.C.No.15/2022, the physical fitness certificate also indicates that the respondent-husband is suffering from "Chronic Anxiety Disorder", this contention nowhere finds place in MC No.15/2022 nor the respondent-husband is represented by any next friend in MC.No.15/2022 in order to substantiate his contention that he is suffering from "Chronic Anxiety Disorder". Though the respondent-husband tried to contend before this court that he is not physically fit who appear before the Court at Raichur due to his mental incapacity by placing reliance on Annexure - A, the same having not found in M.C.No.15/2022, where the petition was filed in the year 2022 itself and disorder certificate is as early as in the year 2019, the material placed before the Court cannot be accepted rather it can be assumed that the objections statement filed by the respondent-husband is to evade the transfer of MC.No.15/2022 at the place of convenience of the wife.

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8. Generally under Section 24 of CPC, when the matrimonial cases are to be transferred from one Court to the other court, the convenience of the wife has to be looked into than the convenience of the husband.

9. The Apex Court in number of judgments in line has categorically stated that the convenience of the wife has to be looked into. The Apex Court in the case of Sunita Singh vs. Kumar Sanjay¹ has held that, since it was the matrimonial proceedings instituted by the husband against the wife, the convenience of the wife has to be considered in contesting the suit. The Apex Court in the recent judgment in case of N.C.V. Aishwarya VS. A.S.Saravana Karthik Sha in civil appeal No.4894 of 2022 has held that at para No.9 which reads as under:

"9. The cardinal principle for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts (2001)10 SCC 41 NC: 2023:KHC-K:7192 have to take into consideration the economic soundness of both the parties, the social

strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life.

Given the prevailing socio-economic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer."

10. In the present case, the petitioner is a young lady aged about 27 years staying with her parents at Raichur. The criminal miscellaneous No.267/2019 filed though decreed in her favour, the respondent-husband has not paid any maintenance and criminal miscellaneous seeking for recovery of maintenance is still pending consideration and the respondent-husband is avoiding maintenance. The petitioner is unable to maintain the expenses to travel around 180 kilometers would definitely cause inconvenience to her and the husband has failed to substantiate that he is suffering from Chronic Anxiety Disorder. Under these circumstances, this Court is of the NC: 2023:KHC-K:7192 considered view that the petition filed by the wife deserves to be allowed.

11. Accordingly, this Court pass the following:

ORDER

a) The Civil Petition is hereby allowed.

b) The M.C.No.15/2022 pending on the file of the Principal Senior Civil Judge and CJM, Bellari sitting at II ASCJ, Siruguppa is withdrawn and transferred to the Principal Judge, Family Court, Raichur and to be tried along with Criminal Miscellaneous No.18/2020 which is pending consideration before the Principal Judge, Family Court, Raichur.

Accordingly, civil petition stands disposed of.

Sd/-

JUDGE RSP